

LEGISLATURE OF NEBRASKA  
ONE HUNDRED NINTH LEGISLATURE  
FIRST SESSION

**LEGISLATIVE BILL 608**

FINAL READING

Introduced by Bostar, 29.

Read first time January 22, 2025

Committee: Revenue

1 A BILL FOR AN ACT relating to first responders; to amend sections  
2 85-2601, 85-2602, 85-2604, 85-2605, 85-2606, 85-2607, and 85-2608,  
3 Reissue Revised Statutes of Nebraska, and section 44-314, Revised  
4 Statutes Cumulative Supplement, 2024; to change the definition of  
5 professional firefighter for purposes of certain insurance  
6 protections; to include correctional officers, youth detention  
7 officers, certain eligible disabled persons and their children  
8 within the First Responder Recruitment and Retention Act; to require  
9 partial reimbursement for certain tuition waivers by the state; to  
10 provide duties for the Coordinating Commission for Postsecondary  
11 Education and postsecondary educational institutions; to define and  
12 redefine terms; to harmonize provisions; to repeal the original  
13 sections; and to outright repeal sections 85-2603 and 85-2603.01,  
14 Reissue Revised Statutes of Nebraska.  
15 Be it enacted by the people of the State of Nebraska,

1           **Section 1.** Section 44-314, Revised Statutes Cumulative Supplement,  
2   2024, is amended to read:

3           44-314 (1) Except as provided in subsection (2) of this section, an  
4   employer providing for an individual or family health insurance policy  
5   for a first responder employee shall not cancel such policy if the first  
6   responder suffers serious bodily injury from an event that occurs while  
7   the first responder is acting in the line of duty and that results in the  
8   first responder falling below the minimum number of working hours needed  
9   to maintain his or her regular individual or family health insurance.

10          (2) Subsection (1) of this section does not prohibit an employer  
11   from canceling such policy if the first responder:

12          (a) Voluntarily ceases to be employed with the employer; or

13          (b) Does not return to employment within twelve months after the  
14   date of injury.

15          (3) For a first responder who dies as a result of an event that  
16   occurs while the first responder is acting in the line of duty, the  
17   employer of such first responder shall not cancel any health insurance  
18   policy covering a spouse or dependent of such first responder for a  
19   period of at least twelve months following such death.

20          (4) For purposes of this section:

21          (a) Employer means any state or local governmental entity that  
22   employs a first responder;

23          (b) First responder means any law enforcement officer, professional  
24   firefighter, or paid individual licensed under a licensure classification  
25   in subdivision (1) of section 38-1217 who provides medical care in order  
26   to prevent loss of life or aggravation of physiological or psychological  
27   illness or injury;

28          (c) Law enforcement officer has the same meaning as in section  
29   81-1401;

30          (d) Line of duty means any action that a first responder is  
31   authorized or obligated by law, rule, or regulation to perform, related

1 to or as a condition of employment or service; and

2 (e) Professional firefighter means an individual who is a  
3 firefighter or firefighter-paramedic as a full-time career and who is a  
4 member of a paid fire department of any of the following entities within  
5 Nebraska:

6 (i) A municipality, including a municipality having a home rule  
7 charter or a municipal authority created pursuant to a home rule charter  
8 that has its own paid fire department;

9 (ii) A rural or suburban fire protection district; or

10 (iii) A fire service providing fire protection to federal or state  
11 military installations.

12 **Sec. 2.** Section 85-2601, Reissue Revised Statutes of Nebraska, is  
13 amended to read:

14 ~~85-2601~~ Sections 2 to 18 of this act ~~85-2601 to 85-2608~~ shall be  
15 known and may be cited as the First Responder Recruitment and Retention  
16 Act.

17 **Sec. 3.** Section 85-2602, Reissue Revised Statutes of Nebraska, is  
18 amended to read:

19 ~~85-2602~~ For purposes of the First Responder Recruitment and  
20 Retention Act:

21 (1) Associate degree program means a degree program at a community  
22 college, state college, or state university which typically requires  
23 completion of an organized program of study of at least sixty semester  
24 credit hours or an equivalent that can be shown to accomplish the same  
25 goal. Associate degree program does not include a baccalaureate degree  
26 program;

27 (2) Baccalaureate degree program means a degree program at a  
28 community college, state college, or state university which typically  
29 requires completion of an organized program of study of at least one  
30 hundred twenty semester credit hours or an equivalent that can be shown  
31 to accomplish the same goal;

1       (3) Community college means a public postsecondary educational  
2 institution which is part of the community college system and includes  
3 all branches and campuses of such institution located within the State of  
4 Nebraska;

5       (4) Correctional officer means an individual who is employed full-  
6 time by a jail or by the Department of Correctional Services and who is  
7 responsible for the supervision, safety, and security of an adult  
8 correctional facility's population through daily direct contact and  
9 interactions with incarcerated individuals;

10       (5) Eligible disabled person means an individual who was employed as  
11 a first responder but who, due to injury or illness that resulted from or  
12 is connected to such employment, is no longer able to maintain employment  
13 as a first responder;

14       (6) First responder means a law enforcement officer, professional  
15 firefighter, correctional officer, or youth detention officer;

16       (7) ~~(4)~~ Law enforcement officer means any individual who is a law  
17 enforcement officer as defined in section 81-1401;

18       (8) ~~(5)~~ Legal dependent has the same meaning as it is used for  
19 purposes of the Free Application for Federal Student Aid;

20       (9) ~~(6)~~ Line of duty means any action that a first responder ~~law~~  
21 ~~enforcement officer or professional firefighter~~ is authorized or  
22 obligated by law, rule, or regulation to perform, related to or as a  
23 condition of employment or service;

24       (10) ~~(7)~~ Professional firefighter means an individual who is a  
25 firefighter or firefighter-paramedic as a full-time career and who is a  
26 member of a paid fire department of any of the following entities within  
27 Nebraska:

28       (a) A municipality, including a municipality having a home rule  
29 charter or a municipal authority created pursuant to a home rule charter  
30 that has its own paid fire department;

31       (b) A rural or suburban fire protection district; or

1 (c) A fire service providing fire protection to federal or state  
2 military installations;

3 (11) Qualifying child means:

4 (a) A legal dependent; or

5 (b) A person who is a nondependent child of a first responder or an  
6 eligible disabled person and who is a legal dependent of another parent.

7 To be considered a qualifying child under this subdivision, the maternity  
8 or paternity of the child shall be verified through a birth certificate  
9 or other means approved by the admission or financial aid office of the  
10 state university, state college, or community college;

11 (12) Qualifying degree means:

12 (a) For a law enforcement officer, a degree that relates to a career  
13 in law enforcement;

14 (b) For a professional firefighter, a degree that relates to a  
15 career in professional firefighting; and

16 (c) For a correctional officer or youth detention officer, a degree  
17 that relates to a career in corrections, youth detention, or law  
18 enforcement;

19 (13) ~~(8)~~ State college means a public postsecondary educational  
20 institution which is part of the Nebraska state college system and  
21 includes all branches and campuses of such institution located within the  
22 State of Nebraska;

23 (14) ~~(9)~~ State university means a public postsecondary educational  
24 institution which is part of the University of Nebraska and includes all  
25 branches and campuses of such institution located within the State of  
26 Nebraska; and

27 (15) Superior officer means:

28 (a) For a law enforcement officer, such officer's superior law  
29 enforcement officer;

30 (b) For a professional firefighter, the fire chief of such  
31 professional firefighter's fire department; and

1        (c) For a correctional officer or youth detention officer, such  
2 officer's superior;

3        (16) ~~(10)~~ Tuition means the charges and cost of tuition as set by  
4 the governing body of a state university, state college, or community  
5 college; and -

6        (17) Youth detention officer means an individual who is employed  
7 full-time by a juvenile detention facility, as defined in section  
8 83-4,125, and who is responsible for the secure detention and treatment  
9 of a juvenile detention facility's population through daily direct  
10 contact and interactions with detained juveniles.

11        **Sec. 4.** (1) Except as provided in subsection (3) of this section, a  
12 first responder shall be entitled to a tuition waiver as provided in  
13 section 13 of this act from any state university, state college, or  
14 community college for an associate or baccalaureate degree program if the  
15 first responder:

16        (a) Satisfies the relevant requirements of section 5 of this act;

17        (b) Meets all admission requirements of the state university, state  
18 college, or community college;

19        (c) Pursues studies leading to a qualifying degree from an associate  
20 degree program or a baccalaureate degree program;

21        (d) Submits the certificate of verification required by subsection  
22 (2) of this section; and

23        (e) Files with the Department of Revenue documentation showing proof  
24 of employment as a first responder and proof of residence in Nebraska  
25 each year such first responder applies for and receives the tuition  
26 waiver.

27        (2) An application for the tuition waiver shall include a  
28 certificate of verification from the first responder's superior officer  
29 attesting to such first responder's satisfaction of section 5 of this  
30 act. The first responder shall include the certificate of verification  
31 when applying to the state university, state college, or community

1 college in order to obtain tuition waiver upon initial enrollment.

2 (3) For a first responder who is a correctional officer or a youth  
3 detention officer, the tuition waiver shall only be available beginning  
4 July 1, 2027, and shall only be available for attendance at a state  
5 university.

6 **Sec. 5.** In order for a first responder or a first responder's  
7 qualifying child to be eligible to receive a tuition waiver under section  
8 13 of this act, the first responder must meet the following criteria:

9 (1) If the first responder is a law enforcement officer, such  
10 officer must possess a law enforcement officer certificate under sections  
11 81-1401 to 81-1414.19. This subdivision shall not be satisfied if the  
12 Nebraska Police Standards Advisory Council has revoked or suspended such  
13 certificate or limited certificate under subdivision (6) of section  
14 81-1403 and the Nebraska Commission on Law Enforcement and Criminal  
15 Justice has reviewed and approved such revocation or suspension;

16 (2) If the first responder is a firefighter, such firefighter must  
17 maintain satisfactory performance with such firefighter's fire  
18 department;

19 (3) If the first responder is a correctional officer, such officer  
20 must maintain satisfactory performance as a correctional officer; or

21 (4) If the first responder is a youth detention officer, such  
22 officer must maintain satisfactory performance as a youth detention  
23 officer.

24 **Sec. 6.** (1) Except as provided in subsection (3) of this section,  
25 an eligible disabled person shall be entitled to a tuition waiver as  
26 provided in section 13 of this act from any state university, state  
27 college, or community college for an associate or baccalaureate degree  
28 program if such person:

29 (a) Satisfies the relevant requirements of section 7 of this act;

30 (b) Meets all admission requirements of the state university, state  
31 college, or community college;

1       (c) Submits the certificate of verification required by subsection  
2       (2) of this section; and

3       (d) Files with the Department of Revenue documentation showing proof  
4       of status as an eligible disabled person and proof of residence in  
5       Nebraska each year such person applies for and receives the tuition  
6       waiver.

7       (2) An application for the tuition waiver shall include a  
8       certificate of verification from the applicant's former superior officer  
9       attesting to such applicant's satisfaction of section 7 of this act. The  
10       applicant shall include the certificate of verification when applying to  
11       the state university, state college, or community college in order to  
12       obtain tuition waiver upon initial enrollment.

13       (3) For an eligible disabled person who was a correctional officer  
14       or a youth detention officer, the tuition waiver shall only be available  
15       beginning July 1, 2027, and shall only be available for attendance at a  
16       state university.

17       **Sec. 7.** In order for an eligible disabled person or such person's  
18       qualifying child to be eligible to receive a tuition waiver under the  
19       First Responder Recruitment and Retention Act, the eligible disabled  
20       person must meet the following criteria:

21       (1) If the eligible disabled person was a law enforcement officer,  
22       such person possessed, at the time of becoming disabled, a law  
23       enforcement officer certificate under sections 81-1401 to 81-1414.19.  
24       This subdivision shall not be satisfied if the Nebraska Police Standards  
25       Advisory Council has revoked or suspended such certificate or limited  
26       certificate under subdivision (6) of section 81-1403 and the Nebraska  
27       Commission on Law Enforcement and Criminal Justice has reviewed and  
28       approved such revocation or suspension;

29       (2) If the eligible disabled person was a firefighter, such person  
30       maintained, at the time of becoming disabled, satisfactory performance  
31       with such firefighter's fire department;



1       (3) If the eligible disabled person was a correctional officer, such  
2 person maintained, at the time of becoming disabled, satisfactory  
3 performance as a correctional officer; or

4       (4) If the eligible disabled person was a youth detention officer,  
5 such person maintained, at the time of becoming disabled, satisfactory  
6 performance as a youth detention officer.

7       **Sec. 8.**   A first responder or an eligible disabled person may  
8 receive a tuition waiver for up to five years if he or she otherwise  
9 continues to be eligible for participation under sections 4 to 7 of this  
10 act.

11       **Sec. 9.**   (1) Except as provided in subsections (3) and (4) of this  
12 section, a qualifying child of a first responder who satisfies section 5  
13 of this act or of an eligible disabled person who satisfies section 7 of  
14 this act shall be entitled to a tuition waiver as provided in section 13  
15 of this act from any state university, state college, or community  
16 college for an associate or baccalaureate degree program if the  
17 qualifying child:

18       (a) Meets all admission requirements of the state university, state  
19 college, or community college;

20       (b) Executes an agreement in accordance with section 10 of this act;

21       (c) Has not previously earned a baccalaureate degree;

22       (d) Completes and submits to the United States Department of  
23 Education a Free Application for Federal Student Aid;

24       (e) Submits a document to the state university, state college, or  
25 community college confirming that the qualifying child has satisfied  
26 subdivision (1)(d) of this section. Such document shall be submitted in a  
27 form and manner as prescribed by the university, college, or community  
28 college;

29       (f) Submits the certificate of verification required by subsection  
30 (2) of this section; and

31       (g) Files with the Department of Revenue documentation showing proof

1 that, for each year in which the qualifying child applies for and  
2 receives the tuition waiver, the first responder or eligible disabled  
3 person through whom the qualifying child is claiming the tuition waiver:

4 (i) Is employed as a first responder or is an eligible disabled  
5 person, as applicable; and

6 (ii) Resides in Nebraska.

7 (2)(a) An application for the tuition waiver shall include a  
8 certificate of verification from:

9 (i) The first responder's superior officer attesting to such first  
10 responder's satisfaction of section 5 of this act; or

11 (ii) The eligible disabled person's former superior officer  
12 attesting to such person's satisfaction of section 7 of this act.

13 (b) The applicant shall include the certificate of verification when  
14 applying to the state university, state college, or community college in  
15 order to obtain a tuition waiver upon initial enrollment.

16 (3) The death of a first responder in the line of duty that occurs  
17 after submission of an application for a tuition waiver shall not  
18 disqualify such first responder's otherwise eligible qualifying child  
19 from receiving the tuition waiver. In such case:

20 (a) In lieu of submitting the certificate of verification provided  
21 for in subsection (2) of this section, the qualifying child shall submit  
22 a certificate of verification from the first responder's superior officer  
23 attesting that:

24 (i) At the time of such death, such first responder satisfied  
25 section 5 of this act; and

26 (ii) Such first responder died in the line of duty; and

27 (b) In lieu of making the filing required by subdivision (1)(g) of  
28 this section, the qualifying child shall file with the Department of  
29 Revenue documentation showing proof that, at the time of such death:

30 (i) Such first responder was employed as a first responder; and

31 (ii) Such first responder resided in Nebraska.

1       (4) For a qualifying child of a first responder who is a  
2       correctional officer or a youth detention officer or of an eligible  
3       disabled person who was a correctional officer or a youth detention  
4       officer, the tuition waiver shall only be available beginning July 1,  
5       2027, and shall only be available for attendance at a state university.

6       **Sec. 10.** Section 85-2605, Reissue Revised Statutes of Nebraska, is  
7       amended to read:

8       ~~85-2605~~ (1) Each qualifying child ~~legal dependent~~ who is a tuition  
9       waiver recipient under the First Responder Recruitment and Retention Act  
10      shall execute an agreement. Such agreement shall be exempt from the  
11      requirements of the State Procurement Act and shall include the following  
12      terms, as appropriate:

13      (a) The tuition waiver recipient agrees to reside within the State  
14      of Nebraska for a period of five years following the use of the tuition  
15      waiver;

16      (b) Each year during the five-year period following use of the  
17      tuition waiver the tuition waiver recipient agrees to file a tax return  
18      with the Department of Revenue to document that such recipient still  
19      resides in the State of Nebraska;

20      (c) If the tuition waiver recipient fails to annually file a tax  
21      return to prove residency in the State of Nebraska for the five-year  
22      period following the use of the tuition waiver or fails to remain a  
23      resident of Nebraska for the five-year period following the use of the  
24      tuition waiver, the tuition waiver recipient agrees to repay the  
25      community college, state college, or state university that such tuition  
26      waiver recipient attended the amount of tuition that was waived for such  
27      individual if the community college, state college, or state university  
28      requests such payment on the dates and in the amounts requested; and

29      (d) Any residency, filing, or payment obligation incurred by the  
30      tuition waiver recipient under the First Responder Recruitment and  
31      Retention Act is canceled in the event of the tuition waiver recipient's

1 total and permanent disability or death.

2 (2) The five-year residency requirement begins to run after use of  
3 the first tuition waiver and:

4 (a) Completion of the five-year tuition waiver eligibility;

5 (b) Completion of an undergraduate degree at a state college or  
6 state university;

7 (c) Completion of a two-year degree at a community college and  
8 notification by the tuition waiver recipient to the Department of Revenue  
9 that such recipient does not intend to pursue an undergraduate degree or  
10 additional two-year degree using tuition waivers pursuant to the First  
11 Responder Recruitment and Retention Act; or

12 (d) Notification by the tuition waiver recipient to the Department  
13 of Revenue that such recipient does not plan to use additional tuition  
14 waivers pursuant to the First Responder Recruitment and Retention Act.

15 **Sec. 11.** A qualifying child may receive the tuition waiver under  
16 section 9 of this act for up to five years if the qualifying child  
17 continues to be eligible for participation. The five years of tuition  
18 waiver eligibility starts once the qualifying child applies for and  
19 receives the tuition waiver for the first time and is available to such  
20 qualifying child for the next consecutive five years.

21 **Sec. 12.** Within forty-five days after receipt of a completed  
22 application under section 4, 6, or 9 of this act, the state university,  
23 state college, or community college shall send written notice of the  
24 applicant's eligibility or ineligibility for the tuition waiver. If the  
25 applicant is determined not to be eligible for the tuition waiver, the  
26 notice shall include the reason or reasons for such determination.

27 **Sec. 13.** A state university, state college, or community college  
28 that has granted a tuition waiver under the First Responder Recruitment  
29 and Retention Act shall waive one hundred percent of resident tuition  
30 charges remaining due after subtracting awarded federal financial aid  
31 grants and state scholarships and grants for the tuition waiver recipient

1 during the time the recipient is enrolled. To remain eligible, such  
2 recipient must comply with all requirements of the institution for  
3 continued attendance and award of an associate degree or a baccalaureate  
4 degree.

5 **Sec. 14.** (1) Beginning July 1, 2028, subject to available  
6 appropriations, the Coordinating Commission for Postsecondary Education  
7 shall reimburse each state university for fifty percent of the tuition  
8 waivers for correctional officers, youth detention officers, eligible  
9 disabled persons that were formerly correctional officers and youth  
10 detention officers, and the qualifying children of such officers and  
11 persons granted in the preceding year by such state university.

12 (2) A state university shall request reimbursement by submitting  
13 documentation in a form and manner prescribed by the commission.

14 (3) If state appropriations are not sufficient to satisfy all of the  
15 claims filed during any year, then the commission shall prorate each  
16 state university's total reimbursement for that year in proportion to the  
17 remaining appropriation. Any reimbursement claims paid on a prorated  
18 basis shall not be refiled.

19 **Sec. 15.** Section 85-2604, Reissue Revised Statutes of Nebraska, is  
20 amended to read:

21 ~~85-2604~~ Each state university, state college, or community college  
22 shall adopt and promulgate the procedures, rules, and regulations  
23 necessary to carry out the First Responder Recruitment and Retention Act.

24 **Sec. 16.** Section 85-2606, Reissue Revised Statutes of Nebraska, is  
25 amended to read:

26 ~~85-2606~~ The Department of Revenue shall administer and enforce the  
27 First Responder Recruitment and Retention Act and may adopt and  
28 promulgate rules and regulations to carry out the First Responder  
29 Recruitment and Retention Act.

30 **Sec. 17.** Section 85-2607, Reissue Revised Statutes of Nebraska, is  
31 amended to read:

1       ~~85-2607~~ On or before December 31 of each year, each state  
2 university, state college, and community college shall provide to the  
3 Department of Revenue a list of the qualifying children ~~legal dependents~~  
4 who received a tuition waiver pursuant to the First Responder Recruitment  
5 and Retention Act during such year.

6       **Sec. 18.** Section 85-2608, Reissue Revised Statutes of Nebraska, is  
7 amended to read:

8       ~~85-2608~~ (1) The Department of Revenue shall maintain a record of the  
9 qualifying children ~~legal dependents~~ who have received tuition waivers  
10 pursuant to the First Responder Recruitment and Retention Act.

11       (2) On or before each August 1, the department shall provide a  
12 report to each state university, state college, and community college  
13 indicating which tuition waiver recipients have failed to file a tax  
14 return with the department to document that such recipients still resided  
15 in the State of Nebraska during the preceding year.

16       **Sec. 19.** Original sections 85-2601, 85-2602, 85-2604, 85-2605,  
17 85-2606, 85-2607, and 85-2608, Reissue Revised Statutes of Nebraska, and  
18 section 44-314, Revised Statutes Cumulative Supplement, 2024, are  
19 repealed.

20       **Sec. 20.** The following sections are outright repealed: Sections  
21 85-2603 and 85-2603.01, Reissue Revised Statutes of Nebraska.